

24STCV16441 24STCV16441

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-08

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Case Number: 24STCV16441 Hearing Date: September 8, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September 8, 2026 TRIAL

DATE: Vacated

CASE: Rojas v. General Motors, LLC

CASE

NO.: 24STCV16441

MOTION FOR

ATTORNEYS' FEES

MOVING PARTY/PARTIES: Plaintiff Elmer Joel Alvarado Rojas

RESPONDING PARTY/PARTIES: Defendant

General Motors LLC

PROOF OF SERVICE:

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Defendant opposes the motion on the

merits, and thereby waived any procedural objections. (See *In re Marriage of Falcone* (2008)

164 Cal.App.4th 814, 826.)

CASE HISTORY:

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July 1, 2024: Complaint filed.

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February 10, 2026: Plaintiff filed
notice of acceptance of statutory offer to compromise.

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March 25, 2026: Judgment entered.

STATEMENT OF MATERIAL FACTS AND/OR
PROCEEDINGS:

Plaintiff Elmer Joel Alvarado Rojas
("Plaintiff") settled his claims against Defendant General Motors LLC
("Defendant"). Now, Plaintiff moves to
recover his attorneys' fees. Defendant
opposes the motion.

TENTATIVE RULING:

Plaintiff's
motion for attorneys' fees is GRANTED in the amount of \$25,031.25.

Moving
party to give notice.

DISCUSSION:

Motion for attorneys' fees

The prevailing party must seek an
award of attorneys' fees via a noticed motion, and bears the burden of proof to
justify the amount sought. (See Code
Civ. Proc., § 1033.5, subd. (c)(5)(A).)

Here, Plaintiff contends his
attorney billed \$33,375 in attorney's fees.

This lodestar figure is based on billing at the hourly rate of \$675 per hour. “The reasonable market value of the attorney’s services is the measure of a reasonable hourly rate. This standard applies regardless of whether the attorneys claiming fees charge nothing for their services, charge at below-market or discounted rates, represent the client on a straight contingent fee basis, or are in-house counsel.” (Chacon v. Litke (2010) 181 Cal.App.4th 1234, 1260, internal quotations and citations omitted.) Based on the Court’s experience in reviewing requests for attorneys’ fees in similar litigation and the evidence before the Court, the Court concludes that hourly rates of up to \$675 per hour amply compensate Plaintiff’s counsel for work on this matter. (See Stratton v. Beck (2017) 9 Cal.App.5th 483, 496.) Accordingly, the Court declines to award a positive multiplier.

As Defendant points out, Plaintiff settled this matter after straightforward litigation. Plaintiff’s counsel drafted the complaint, served initial disclosures, exchanged basic written discovery, took the deposition of Defendant’s person most qualified to testify on specified matters, and settled the matter after mediation. Both the complaint, discovery requests, and motion for attorney’s fees are standard for actions under the Song-Beverly Consumer Warranty Act, in which Plaintiff’s counsel specializes, and should not have required Plaintiff’s attorney to perform substantial work beyond modifying templates. Indeed, Plaintiff’s counsel states that counsel has litigated thousands of such cases. (See Declaration of Joseph Kaufman, ¶ 9.) Nonetheless, Plaintiff’s attorneys billed 85.30 hours in connection with this matter. For example, Plaintiff’s counsel billed 6.9 hours in connection with responding to Defendant’s discovery requests. These discovery requests are straightforward and vary little between cases. The Court finds that Plaintiff’s counsel spent “an unreasonably excessive amount of time . . . on a noncomplex matter.” (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 253.) For the same reason, Plaintiff’s counsel’s billing for 12.3 hours in connection with this motion is unreasonably inflated. “[P]adding in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132, internal citations and quotations omitted.) Finally, Plaintiff’s attorney’s invoice reflects block billing. “Block billing occurs when a block of time is assigned to multiple tasks rather than itemizing the time spent on each task.” (Mountjoy v. Bank of America, N.A.

(2016) 245 Cal.App.4th 266, 279, internal quotations and citations omitted.) This too warrants a reduction in attorneys' fees. Accordingly, the Court applies a negative multiplier of .75 and awards Plaintiff attorney's fees in the amount of \$25,031.25.

Accordingly,
Plaintiffs' motion for attorneys' fees is GRANTED in the amount of \$25,031.25.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 8, 2026 _____

Rolf
M. Treu

Judge
of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.